

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Julianne Wurm v. James Pitkow et al

24CV000921

PLAINTIFF’S MOTION TO WAIVE UNDERTAKING UNDER CODE OF CIVIL PROCEDURE SECTION 995.240 AND FOR STAY OF ENFORCEMENT OF MONEY JUDGMENT PENDING APPEAL; ALTERNATIVELY, FOR TEMPORARY STAY UNDER CODE OF CIVIL PROCEDURE SECTION 918 PENDING HEARING AND DETERMINATION (filed 5/8/26)

TENTATIVE RULING: The motion is DENIED.

Plaintiff Julianne Wurm moves, pursuant to Code of Civil Procedure sections 917.1 and 995.240,¹ for an order staying enforcement of the judgment pending appeal with waiver of an undertaking. Alternatively, Plaintiff moves, pursuant to section 918, for a temporary stay of the judgment pending hearing and determination of this motion.

The default rule is that, “[u]nless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is ... [m]oney or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action.” (§ 917.1, subd. (a)(1), emphasis added.)

However, “[t]he court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient sureties, whether personal or admitted surety insurers. In exercising its discretion the court shall take into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived.” (§ 995.240.)

“A party seeking relief under this statute must make a motion to the trial court and has the burden of proving he was in fact indigent.” (*Burkes v. Robertson* (2018) 26 Cal.App.5th 334, 346, citing *Fuller v. State of California* (1969) 1 Cal.App.3d 664, 668, 670-71 [party seeking waiver must establish both financial need and effort to obtain a bond].)

Here, Plaintiff contends she is indigent under section 995.240 and cannot obtain sufficient sureties. Plaintiff’s showing as to each point is woefully insufficient. Plaintiff’s Declaration sets forth financials which do not establish or suggest indigency. (Pltf Decl., ¶¶ 9-14.) Her Declaration also fails to set forth facts establishing an inability to obtain sufficient sureties. On this point, the Declaration merely provides that Plaintiff was informed that the equity in one of her two homes might cover the judgment but would not cover the additional cost of bond. (*Id.*, ¶ 16.) That does not establish that Plaintiff, in consideration of the universe of assets detailed in her Declaration (or otherwise), cannot obtain a bond. Defendants argue in

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Opposition that Plaintiff has not sufficiently shown she is indigent, and that evidence from trial—particularly the lease Plaintiff entered into three years ago in which she agreed to pay \$23,000 per month—suggests Plaintiff’s claim of indigency is not credible. Defendants further argue that Plaintiff’s showing of inability to obtain sufficient sureties fails under *Williams v. Freedomcard, Inc.* (2004) 123 Cal.App.4th 609, 615.

The Court finds that Plaintiff has failed to meet her burden under section 995.240. As such, Plaintiff’s request to stay the monetary penalties without an undertaking pursuant to sections 995.240 is DENIED.

Plaintiff alternatively requests an order temporarily staying enforcement of the judgment pursuant to section 918 “so that the status quo may be preserved while the Court considers the request for waiver of undertaking and stay pending appeal.” (Memorandum, 3:23-24; see also Notice of Motion, 2:12-14 [requesting temporary stay “pending hearing and determination of this motion”].) As an initial matter, such request for a stay until the time the present motion is heard appears moot now that the hearing on the present motion is here. Moreover, the Court has no authority to issue such a stay.

“[T]he trial court may stay the enforcement of any judgment or order.” (§ 918, subd. (a).) However, “[i]f the enforcement of the judgment or order would be stayed on appeal only by the giving of an undertaking, a trial court shall not have power, without the consent of the adverse party, to stay the enforcement thereof pursuant to this section for a period which extends for more than 10 days beyond the last date on which a notice of appeal could be filed.” (*Id.*, subd. (b).) This applies “whether or not an appeal will be taken from the judgment or order and whether or not a notice of appeal has been filed.” (*Id.*, subd. (c).)

Here, Defendants do not consent to the stay of enforcement as evidenced by their Opposition. Thus, the Court is only authorized, under section 918, to temporarily stay the judgment for a period up to 10 days beyond the last date when the notice of appeal could be filed. The last day for Plaintiff to file a notice of appeal was May 22, 2026, or 60 days from March 23, 2026 when the Court entered Judgment. With the additional 10 days, this would bring the temporary stay through June 1, 2026. As that date has passed, Plaintiff’s request for a temporary stay of the monetary judgment under section 918 is DENIED.

Defendants invite the Court to move, on its own motion, for sanctions pursuant to section 128.7, subdivision (c)(2). The request is DENIED without prejudice to Defendants’ right to move under section 128.7 subdivision (c)(1).

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Michael Bentley et al v. Mark Vedete et al

26CV000561

DEMURRER TO COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiffs are granted 10 days’ leave from Notice of Entry of Order to amend. (See Rules of Court, rule 3.1320(g).) Defendants are directed to provide Notice of Entry of Order.